

Smt. Johra Bi v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 16 November 2021 · WRIT - C No. - 24902 of 2021 · **Writ dismissed; petitioner relegated to Clause 6.5 Executive Engineer remedy.**

HEADNOTE

A writ raising electricity grievances was dismissed because Clause 6.5 of the Electricity Supply Code, 2005 is the appropriate remedy: a representation to the Executive Engineer. Merits were not decided.

FACTUAL SUMMARY

Smt. Johra Bi invoked the writ jurisdiction of the High Court at Allahabad against the State of Uttar Pradesh and another, through counsel Rajesh Kumar Mishra. The respondents appeared through the Chief Standing Counsel and Rajesh Yadav. Writ-C No. 24902 of 2021 was heard by a Division Bench of Sunita Agarwal and Krishan Pahal JJ. The order does not record the connection, billing, or assessment facts behind the grievances, or any prior representation to the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy — representation to Executive Engineer

HOLDING

For grievances of the kind raised in the writ, the appropriate remedy is to approach the Executive Engineer by invoking Clause 6.5 of the Electricity Supply Code, 2005; the petition is dismissed on the ground of alternative remedy. ¶ 1

PRINCIPLE TAGS

6.5-representation-as-appropriate-remedy The Court held that the petitioner's grievances were to be taken to the Executive Engineer under Clause 6.5 rather than in writ. ¶ 1

clause-6.5-alternate-remedy-to-writ The writ was dismissed solely because Clause 6.5 supplied an alternative remedy. ¶ 1

clause-6.5-statutory-remedy Clause 6.5 was treated as the statutory forum for the grievances pressed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCES

The Court did not examine the underlying dispute or grant or refuse relief on the facts; dismissal rested only on alternative remedy under Clause 6.5. ¶ 1